HEADNOTE

"1. A patent holder is not obliged to assert all patents in one application for provisional measures. If a patent holder has the necessary information for filing an application for provisional measures regarding some, but not all patents, delaying the filing of the Application for provisional measures until it has the necessary information regarding all allegedly infringed patents may be regarded as an unreasonable delay.

2. If a patent holder is aware, on the basis of a document, that one or more of its patents has been infringed, it must not turn a blind eye to the fact that the document also indicates the infringement of one or more of its other patents.

3. As a general rule, the patent holder is not obliged to monitor the market. However, if the patent holder becomes aware of specific circumstances that suggest patent infringement, the patent holder is expected to investigate the matter with due diligence so that the patent holder can take action against all infringers as quickly as possible.

4. A long-standing infringement may indicate that the patent holder has turned a blind eye to the infringement.

5. If the applicant is a legal entity, the decisive factor for assessment of urgency is when its authorised representative body or an individual, who by virtue of its position within the legal entity is capable of pursuing the infringement or reporting it, internally becomes aware of it. For example, this person could be an employee of the legal department, a senior member of the sales department or a mystery shopper engaged specifically to investigate intellectual property rights infringements.

6. As a general rule, the patent holder may wait a reasonable time for a response to a warning letter before drafting and lodging an application for provisional measures.

7. As a general rule, the unsuccessful party must bear the reasonable and proportionate legal costs and other expenses incurred by the successful party (Art. 69(1) UPCA). Exceptions apply where equity requires a different allocation of costs, in particular where a party succeeds only in part or in

> *exceptional circumstances (Art. 69(2) UPCA) and where the party has caused unnecessary costs to the Court or another party (Art. 69(3) UPCA). As a rule, the withdrawal of an action or application means that the defendant must be considered the successful party. Equity does not provide otherwise in cases where the claimant applies to withdraw the application for provisional measures or the action after the defendant, for the first time in the proceedings and not in response of the warning letter, raises an argument against infringement. In principle, a person who has received an unjustified warning is under no obligation to provide clarification why it will not comply with the request."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 443 066

Methods for early detection of cancer

KEYWORDS
claim interpretation
relevance of embodiments - added matter (...
lack of substantiation
general no obligation to monitor the market...

Article 62 Provisional and protective measures

SUMMARY
The Court of Appeal Luxembourg ruled on an application for provisional measures. The patent at issue relates to methods for early detection of cancer. According to the headnotes of the decision, a patent holder need not file a single application covering all allegedly infringed patents, but delaying the filing of an application for provisional measures while waiting to gather information about other patents may be considered an unreasonable delay. When a patent holder becomes aware from a document that one or more of its patents has been infringed, it cannot ignore evidence in that same document suggesting infringement of its other patents. Although patent holders are not generally required to monitor the market, they must conduct due diligence investigations once they become aware of specific circumstances suggesting patent infringement so that they can act against all infringers promptly. A lengthy period of unaddressed infringement may suggest that the patent holder deliberately overlooked the violation. For legal entities, the relevant moment for assessing urgency is when a person with authority to pursue infringement, such as an in-house counsel employee, senior sales manager, or designated investigator, internally becomes aware of it. Patent holders may generally wait a reasonable time for a response to a warning letter before filing an application for provisional measures. Under the UPC cost rules, the unsuccessful party typically bears the reasonable and proportionate costs of the successful party, though exceptions apply where a party succeeds only partially, in exceptional circumstances, or has caused unnecessary costs, and withdrawal of an application ordinarily means the defendant is the successful party regardless of the strength of its defences.